

Department of State,” a court moves to the second step, where it has “authority to decide for itself whether all the requisites for such immunity exist[].” *Id.* The court grants immunity at step two if it determines that “the ground of immunity is one which it is the established policy of the [State Department] to recognize.” *Id.* at 312 (quoting *Republic of Mexico v. Hoffman*, 324 U.S. 30, 36 (1945)).

In *Samantar*, the Supreme Court noted that “the same two-step procedure was typically followed when a foreign official asserted immunity.” *Id.* But *Samantar* stands principally for the proposition that the Foreign Sovereign Immunities Act of 1976 does not govern sovereign immunity over individual foreign officials. *Samantar*, 560 U.S. at 308. Emphasizing the narrowness of its holding, the Supreme Court remanded for the district court to consider “in the first instance,” “[w]hether petitioner may be entitled to immunity under the common law” *Id.* at 325–26. On remand, the Fourth Circuit held that the State Department’s immunity determination “carrie[d] substantial weight” but was not dispositive. *Yousuf v. Samantar*, 699 F.3d 763, 773 (4th Cir. 2012) (hereinafter “*Yousuf*”). In so holding, the court distinguished between conduct-based immunity that arises from a foreign official’s duties, and status-based immunity that arises from a foreign official’s status as a head-of-state. *Id.* at 772–73. Regarding the latter, the Fourth Circuit held that a determination from the State Department is likely controlling. But in *Yousuf*, the defendant was not a head-of-state, and therefore the Fourth Circuit engaged in an independent analysis (although giving “substantial weight” to the State Department’s suggestion of non-immunity) to determine that the defendant was not entitled to immunity. *Id.* at 777–78.

The Doğans urge us to adopt the Fourth Circuit’s approach. But we need not decide the level of deference owed to the State Department’s suggestion of immunity in this case, because even if the suggestion of immunity is afforded “substantial weight” (as opposed to absolute deference), based on the record before us we conclude that Barak would still be entitled to immunity. Common-law foreign sovereign immunity extends to individual foreign officials for “acts performed in [their] official capacity if the effect of exercising jurisdiction would be to enforce a rule of law against the state[.]” Restatement (Second) of Foreign Relations Law § 66(f) (1965). According to the Complaint, Barak was “instructed by the Prime Minister to conduct” the operations. The Complaint further alleged that Barak’s “power . . . to plan, order, and control the IDF operation and troops as Minister of Defense is set out in Israel’s Basic Law[.]” The Complaint’s claims for relief state—several times—that Barak’s actions were done under “actual or apparent authority, or color of law, of the Israeli Ministry of Defense and the Government of the State of Israel.” And if the State Department’s SOI is not entitled to absolute deference, we would nonetheless give it considerable weight. We conclude that exercising jurisdiction over Barak in this case would be to enforce a rule of law against the sovereign state of Israel, and that Barak would therefore be entitled to common-law foreign sovereign immunity even under the Doğans’ preferred standard (i.e., conducting an independent judicial determination of entitlement to immunity).

III

Next, the Doğans argue that even if Barak is entitled to common law immunity, Congress has abrogated common

law foreign official immunity via the TVPA. The TVPA provides:

An individual who, under actual or apparent authority, or color of law, of any foreign nation—

- (1) subjects an individual to torture shall, in a civil action, be liable for damages to that individual; or
- (2) subjects an individual to extrajudicial killing shall, in a civil action, be liable for damages to the individual's legal representative, or to any person who may be a claimant in an action for wrongful death.

28 U.S.C. § 1350, note § 2(a). The Doğans contend that the TVPA's plain language unambiguously imposes liability on any foreign official who engages in extrajudicial killings.⁵ Thus, the question is whether Barak's common law immunity is abrogated by the text of the TVPA.

The Supreme Court has held that courts should “proceed on the assumption that common-law principles of . . . immunity were incorporated into our judicial system and that they should not be abrogated absent clear legislative intent to do so.” *Filarisky v. Delia*, 566 U.S. 377, 389 (2012) (alteration incorporated) (*quoting Pulliam v. Allen*, 466 U.S. 522, 529 (1984)). Thus, even where “the statute on its face

⁵ Because we hold that the TVPA does not abrogate common law foreign official immunity, we do not reach the question whether the killing in this case was “extrajudicial” within the meaning of the TVPA.